

Council for Technical Education and Vocational Training (CTEVT) Act, 1989

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Technical Education and Vocational Training Council Act, 2045

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Amending Acts

1. Technical Education and Vocational Training Council (First Amendment) Act, 2049 2050.2.27
2. This Act shall come into force from Bhadra 17, 2063. Some Nepal Acts Amending Act relating to Education and Sports, 2063 2063.9.14
3. This Act shall come into force from Jestha 15, 2065. Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2066.10.17
4. Some Nepal Acts Amending Act to make them Consistent with the Constitution of Nepal, 2075 2075.11.19

Act No. 20 of the year 2045

An Act made to establish and manage the Technical Education and Vocational Training Council

Preamble: Whereas, it is desirable to establish and manage a Technical Education and Vocational Training Council for the purpose of providing technical education and vocational training in a planned manner to produce basic, intermediate and high level technical manpower, and for determining and certifying skill standards;

Now, therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act with the advice and consent of the National Panchayat. 1. Short Title and Commencement:

1.1 This Act may be called the "Technical Education and Vocational Training Council Act, 2045". 1.2 This Act shall come into force on such date as the Government of Nepal may appoint by notification published in the Nepal Gazette. The date is appointed to come into force from Falgun 12, 2045. (N.G. 2045.11.9)

2. Definitions:

2.1 Unless the subject or context otherwise requires, in this Act,-

Amended by the First Amendment. 2.1.1 "Assembly" means the Technical Education and Vocational Training Assembly constituted pursuant to Section 2A. Amended by the First Amendment. 2.1.2 "Council" means the Technical Education and Vocational Training Council established pursuant to Section 3. 2.1.3 "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules or regulations made under this Act. Added by the First Amendment. 2A.

Constitution of the Technical Education and Vocational Training Assembly: 2A.1 The constitution of the Technical Education and Vocational Training Assembly shall be as follows:- Amended by Some Nepal Acts Amending Act to make them Consistent with the Constitution of Nepal, 2075. 2A.1.1 Minister or Minister of

State for Education, Science and Technology - Chairperson 2A.1.2 Deleted by Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2A.1.3 Member, National Planning Commission (looking after manpower) - Member 2A.1.4 Member, Public Service Commission - Member Amended by Some Nepal Acts Amending Act to make them Consistent with the Constitution of Nepal, 2075.2A.1.5 Secretary, Ministry of Education, Science and Technology - Member Amended by Some Nepal Acts Amending Act to make them Consistent with the Constitution of Nepal, 2075.2A.1.6 Secretary, Ministry of Industry, Commerce and Supplies - Member Amended by Some Nepal Acts Amending Act to make them Consistent with the Constitution of Nepal, 2075.2A.1.7 Secretary, Ministry of Labour, Employment and Social Security - Member Amended by Some Nepal Acts Amending Act to make them Consistent with the Constitution of Nepal, 2075.2A.1.8 Secretary, Ministry of Culture, Tourism and Civil Aviation - Member Added by Some Nepal Acts Amending Act relating to Education and Sports, 2063.2A.1.8Ka Vice-Chairperson, Technical Education and Vocational Training Council - Member 2A.1.9 Deleted by Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2A.1.10 Rector, Tribhuvan University - Member 2A.1.11 President, Federation of Nepalese Chambers of Commerce and Industry - Member 2A.1.12 Five persons nominated by the Chairperson from among the technical Deans of universities - Member 2A.1.13 Three persons nominated by the Chairperson from among persons who have made special contributions to technical education and vocational training - Member 2A.1.14 Three persons nominated by the Chairperson from among persons from industrial establishments - Member 2A.1.15 Representative, Nepal Deleted by Some Nepal Acts Amending Act relating to Education and Sports, 2063 Science and Technology Academy - Member 2A.1.15Ka Deleted by Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2A.1.15Kha Deleted by Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2A.1.15Ga Deleted by Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2A.1.15Gha Deleted by Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2A.1.15Nga Deleted by Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 Amended by Some Nepal Acts Amending Act relating to Education and Sports, 2063.2A.1.16 Person designated by the Government of Nepal from among the employees of the Council - Member-Secretary 2A.2 The term of office of nominated members of the Assembly shall be four years, and after the expiry of the term, they may be renominated.

2A.3 The procedure relating to meetings of the Assembly shall be as determined by the Assembly itself. Amended by the First Amendment.3. Establishment of the Council:

3.1 A Technical Education and Vocational Training Council is established to systematize and standardize technical education and vocational training, to maintain coordination among various bodies providing such training, and to determine and certify skill standards. Amended by Some Nepal Acts Amending Act relating to Education and Sports, 2063.3.2 The composition of the Technical Education and Vocational Training Council shall be as follows:-

Amended by Some Nepal Acts Amending Act to make them Consistent with the Constitution of Nepal, 2075.3.2.1 Minister or Minister of State for Education, Science and Technology - Chairperson

3.2.2 Person nominated by the Government of Nepal - Vice-Chairperson

3.2.3 Member, National Planning Commission (looking after manpower) - Member

Amended by Some Nepal Acts Amending Act to make them Consistent with the Constitution of Nepal, 2075.3.2.4 Secretary, Ministry of Education, Science and Technology - Member

3.2.5 Two persons nominated by the Chairperson from among persons who have made special contributions

in the field of technical education and vocational training - Member

3.2.6 Two persons nominated by the Chairperson from various associations and institutions related to technical education and vocational training - Member

3.2.7 Person designated by the Government of Nepal from among the employees of the Council - Member-Secretary

3.3 The Government of Nepal may, if it deems necessary, by notification published in the Nepal Gazette, make necessary additions, deletions or changes among the members of the Council. 3.4 The Council may, if it deems necessary, invite any domestic or foreign expert or advisor to participate as an observer in the meeting of the Council. 3.5 The functions, duties and powers of the Chairperson and members of the Council shall be as prescribed. 3.6 The term of office of nominated members of the Council shall be four years, and after the expiry of the term, they may be renominated. Added by Some Nepal Acts Amending Act relating to Education and Sports, 2063.3.6Ka The functions, duties, powers, and other conditions of service of the Vice-Chairperson of the Council shall be as prescribed. 3.7 Deleted by Some Nepal Acts Amending Act relating to Education and Sports, 2063

4. Council to be a Corporate Body:

4.1 The Council established pursuant to Section 3 shall be an autonomous and corporate body with perpetual succession. 4.2 The Council shall have its own separate seal. 4.3 The Council may acquire, use, sell or otherwise dispose of movable and immovable property as a person. 4.4 The Council may sue and be sued in its own name. 5.

Meetings and Decisions of the Council: 5.1 The meeting of the Council shall be held at such date, time and place as the Chairperson may fix. 5.2 If fifty percent of the total number of members of the Council are present, it shall be deemed to constitute a quorum for the meeting. Amended by the First Amendment.5.3 The meeting of the Council shall be presided over by the Chairperson, and in his/her absence, by the Vice-Chairperson. In the absence of both the Chairperson and Vice-Chairperson, the members present at the meeting shall elect a member from among themselves to preside over the meeting. 5.4 The opinion of the majority in the meeting of the Council shall prevail. In case of a tie, the Chairperson shall give a casting vote. 5.5 The decision of the Council shall be certified by the Member-Secretary. 5.6 Other procedures relating to the meeting of the Council shall be as determined by the Council itself. Added by the First Amendment.5A. Functions, Duties and Powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows:- 5A.1 To provide guidance to the Technical Education and Vocational Training Council. 5A.2 To determine the policy of the Council and to make arrangements for its effective implementation or cause it to be implemented. 5A.3 To evaluate or cause to be evaluated whether the development and expansion of technical education and vocational training are up-to-date. 5A.4 To approve the annual budget and programme of the Council. 5A.5 To cause long-term plans to be prepared and to make necessary arrangements for their implementation. 5A.6 To constitute or cause to constitute committees, sub-committees or study/research teams as required. 5A.7 To give necessary directions to any body or officer under the Council. 5A.8 To perform or cause to perform other functions specified in this Act or the rules made under this Act. Amended by the First Amendment.6. Functions, Duties and Powers of the Council: 6.1 To make arrangements for various teaching, training and research as prescribed for the development of technical education and vocational training, and to make arrangements for its operation. 6.2 To grant approval for teaching or operation of technical education and vocational training to be established or operated in the private and non-governmental sector, and to make provisions regarding facilities and assistance they shall

receive.

6.3 To establish relations with domestic universities or educational institutions regarding technical education and vocational training, and to emphasize quality education or training. 6.4 To determine policies relating to technical education and vocational training and submit them to the Assembly for approval. 6.5 To determine the areas and levels of technical education and vocational training programmes. 6.6 To conduct skill and training at the basic level and produce intermediate level manpower. 6.7 To establish and operate or cause to establish and operate polytechnic educational institutions. 6.8 To implement or cause to implement the curriculum and textbooks for vocational training provided for skill development by corporate bodies owned by the Government of Nepal and non-governmental corporate bodies, as determined by the Curriculum and Textbook Determination Committee. 6.9 To maintain or cause to maintain coordination among various training-related programmes. 6.10 To conduct or cause to conduct training relating to technical instructors. 6.11 To make necessary arrangements for apprenticeship training. 6.12 To make necessary arrangements, within the area of technical education, for training centres, subjects (training packages) and teachers providing training to conduct short-term or mobile training programmes at various locations. 6.13 To make or cause to make arrangements for the classification, testing and certification of skills. 6.14 To prepare skill certificates and determine skill standards. 6.15 To harmonize the in-service and pre-service, technical and vocational training curricula being operated by government and non-governmental bodies, evaluate such training at the national level, determine standards, and grant recognition. 6.16 To perform or cause to perform necessary work to produce basic, intermediate and high level technical manpower. 6.17 To implement or cause to implement programmes approved by the Assembly. 6.18 To mobilize assistance from national and international spheres and to mobilize or cause to mobilize the received assistance in a systematic manner. 6.19 To provide necessary advice to the Government of Nepal regarding technical education and vocational training. 6.20 To enter into agreements or contracts with domestic, foreign or international associations or institutions with the prior approval of the Government of Nepal. 6.21 To submit the annual budget, progress report, audit report and other reports of the Council to the Assembly for approval, ratification, or information. 6.22 To perform or cause to perform other necessary functions for the implementation of the objectives of this Act. Added by Some Nepal Acts Amending Act relating to Education and Sports, 2063.6A.

Recognition of Certificate: The certificate awarded by the Council to a student who has passed the entrance examination and studied for at least two years at an educational institution affiliated with the Council shall be equivalent to a proficiency certificate of a university or other educational institution. 7. Power to Constitute Committees, Sub-committees or Task Forces: 7.1 The Council may, as required, constitute various committees, sub-committees or task forces to conduct its business smoothly. 7.2 The functions, duties and powers of the committees, sub-committees or task forces, and procedures relating to their meetings shall be as prescribed. 8. Power to Raise Financial Resources: For the smooth operation of its work, the Council may, with the prior approval of the Government of Nepal, borrow loans, receive grants, or raise financial resources from any other means. 8A. Added the Ordinance Amending Some Nepal Acts relating to Education and Sports, 2062, and repealed by Some Nepal Acts Amending Act relating to Education and Sports, 2063 Amended by the First Amendment. 9. Provisions relating to Employees: 9.1 The Council may appoint employees as required. 9.2 The remuneration, conditions of service and facilities of the employees of the Council shall be as prescribed. 10. Fund of the Council: 10.1 The Council shall have a separate fund. The following amounts shall be credited to that fund:- 10.1.1 Grant received from the Government of Nepal, 10.1.2 Amount received from any international or foreign institution through the Government of Nepal, 10.1.3 Amount earned from the movable and immovable property of the Council, 10.1.4 Any other amount received by the Council. 10.2 All amounts of the Council shall be deposited in the Nepal Rastra Bank or any

commercial bank in the name of the Council. 10.3 All expenses to be borne on behalf of the Council shall be met from the fund referred to in sub-section 10.1. 10.4 Operation of the account of the Council shall be as prescribed. 11. Accounts and Audit of the Council: 11.1 The accounts of the Council shall be kept in accordance with the prevailing format and method of the Government of Nepal. 11.2 The audit of the Council shall be carried out by the Office of the Auditor General. 11.3 The Government of Nepal may, if it so desires, inspect or cause to be inspected the account books and other cash and goods articles of the Council at any time. 12.

Delegation of Powers: The Council may, as required, delegate all or some of the powers vested in it under this Act to a committee, sub-committee, task force Deleted by the First Amendment. or any authorized employee of the Council. 13. Government of Nepal may give Directions: The Government of Nepal may give necessary directions to the Council regarding technical education and vocational training and determination and certification of skill standards. 14. Liaison with Government of Nepal: The Council shall maintain liaison with the Government of Nepal through the Amended by Some Nepal Acts Amending Act to make them Consistent with the Constitution of Nepal, 2075. Ministry of Education, Science and Technology. 15. Power to make Rules: For the purpose of fulfilling the objectives of this Act, the Government of Nepal may make necessary rules. 16. Power to make Regulations: Subject to this Act and the rules made under this Act, the Council may make necessary regulations for the conduct of its business. Added by Some Nepal Acts Amending Act relating to Education and Sports, 2063.Regulations made in this manner shall come into effect only after approval from the Ministry of Education, Science and Technology. 17. Repeal and Saving: 17.1 The Technical and Vocational Education Committee (Constitution) Order, 2039 is hereby repealed, and all rights and liabilities of the committee constituted under that Order shall devolve upon the Council. 17.2 All acts and proceedings done under the Technical and Vocational Education Committee (Constitution) Order, 2039 shall be deemed to have been done by the Council.